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中国关于美英澳核潜艇合作问题的工作文件

美国、英国、澳大利亚核动力潜艇合作涉及核武器国家首次向无核武器国家转让核潜艇动力堆和武器级高浓铀，构成严重核扩散风险，相关保障监督安排涉及复杂的法律与技术问题，事关《不扩散核武器条约》的权威性、完整性和有效性。这一问题应当成为本轮审议进程的优先讨论事项。

中方希望在本轮《条约》审议进程中，缔约国能够围绕三国核潜艇合作涉及的各方面问题开展深入讨论。2023 年，中方向《条约》十一审一筹会提交了关于美英澳核潜艇合作问题的工作文件（NPT/CONF.2026/PC.I/WP.31）。2024 年 5 月，中国常驻维也纳代表团举办研讨会，主题为“美英澳核潜艇合作：关于国际原子能机构全面保障监督机制发展的案例分析”。中方现将该研讨会的总结报告（INFCIRC/1213）作为工作文件向《条约》十一审二筹会提交。反映研讨会基本情况的主席总结附后，总结报告全文链接请参见：https://www.iaea.org/sites/default/files/publications/documents/infcircs/2024/infcirc1213.pdf

Chair's Summary[1]

AUKUS: A Case Study about the Development of IAEA Comprehensive Safeguards

Workshop organized by the Permanent Mission of China

VIC CR-1: 10 May 2024

Note: This summary has been prepared for information of the Board of Governors meeting in June 2024 as well as to facilitate an intergovernmental discussion process on the AUKUS nuclear submarine acquisition programme within the framework of IAEA, with the objective of enhancing the awareness of Member States regarding the sensitivity and complexity of the safeguards issues concerning any implementation of Paragraph 14 of INFCIRC/153 (Corr.).

On May 10, a workshop titled "**AUKUS: A Case Study about the Development of IAEA Comprehensive Safeguards**" was organized by the Permanent Mission of China at the Vienna International Centre (agenda as well as full presentations are attached) . The workshop was attended by more than 100 representatives from over 50 Member States of the International Atomic Energy Agency (IAEA) and academies. H.E. Ambassador Li Song, Permanent Representative of the People's Republic of China made an introductory remarks to the workshop. Australia's Resident Representative to the IAEA H.E. Ambassador Ian Biggs also attended the workshop and shared his views.

Based on discussions during the first workshop on AUKUS hosted by the Permanent Mission of China a year ago, this year's workshop focused on various aspects of the proposed AUKUS nuclear submarine cooperation and its implications for the Agency's comprehensive safeguards system. Four expert panelists made presentations, in their personal capacity, and provided assessments and comments:

- Ms. Laura Rockwood, Senior Fellow of the VCDNP, Former Section Head for Non-Proliferation and Policy Making Organs, IAEA Office of Legal Affairs, addressed "IAEA safeguards tradition: typical and historical cases for the development of IAEA safeguards system, including arrangements related to the non-application or special procedures of safeguards";
- Mr. Anton Khlopkov, Director of the Center for Energy and Security Studies in Moscow, covered "AUKUS and its transfer of weapon-grade nuclear material: new practice, new territory and new development of IAEA safeguards";
- Mr. Tariq Rauf, Former Head of Verification and Security Policy Coordination, Office reporting to the IAEA Director General, analyzed "Paragraph 14 and AUKUS: whether an universally applicable method is necessary/feasible? How to define non-discriminatory and universally applicable safeguards approaches, safeguards objectives, safeguards measures, and special procedures?";
- Mr. Guo Xiaobing, Senior Fellow of the China Institute of Contemporary International Relations, speaking on "Developing safeguards arrangement on AUKUS: role of the

[1] This Chairs' Summary is solely for information purposes; it reflects the main topics raised and areas of discussion that were relevant to the announced theme, and it does not intend to seek agreement of all participants nor purport to be all inclusive and comprehensive.

Secretariat, Board of Governors and Member States".

Four additional experts and scholars, invited as commentators, speaking in their personal capacity, provided important inputs to the discussion:

- Mr. Vilmos Cserveny, Former Assistant Director General of the IAEA;
- Mr. Nikolai Khlebnikov, Russian Representative at the IAEA Standing Advisory Group on Safeguards Implementation (SAGSI), Former Director of the Division of Technical Support of the IAEA;
- Mr. Naeem Ahmad Salik, Executive Director of Strategic Vision Institute, Islamabad;
- Mr. Zhao Xuelin, Research Associate of China Institute of Nuclear Industry Strategy.

Mr. Ionut Suseanu, Head of the Non-Proliferation and Policy-Making Organ Section, Office of Legal Affairs of the IAEA, on behalf of the IAEA Secretariat, made a presentation relevant to the legal aspects of the agenda items of the workshop. The participants of the workshop discussed a number of points made in his presentation. (The presentation entitled "Elements presented by the Secretariat during the Workshop on 10 May 2024", as provided by Mr. Suseanu, is attached.)

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In this workshop the following views, *inter alia*, as summarized by the Chair, were highlighted by the presenters and discussants.

1. The AUKUS cooperation is for the first time that two nuclear-weapon States, based on geopolitical consideration, intend to carry out nuclear submarine cooperation with a non-nuclear-weapon State military ally and shall involve the transfer of naval nuclear propulsion reactors fueled with a large quantity of weapons-grade highly-enriched uranium (HEU), projected to utilize 4 tonnes of 93%-97% HEU, sufficient to produce 160 nuclear explosive devices.

2. The AUKUS nuclear submarine cooperation is clearly not a routine and peaceful safeguards project between non-nuclear-weapon States members of the Agency and the IAEA Secretariat. And, the AUKUS project is fundamentally different from the indigenous development of nuclear-powered submarines fueled by low-enriched uranium (LEU) by some non-nuclear-weapon States, in particular, in terms of future verification activities.

3. The application and implementation of Paragraph 14 of INFCIRC/153 (Corr.) on the non-application of Agency safeguards on non-proscribed military activities presents novel challenges. This would establish a significant precedent, challenging the correctness and completeness of declarations of nuclear activities by NPT non-nuclear-weapon States (NNWS) and the integrity of the international nuclear non-proliferation regime based on the Treaty on the Non-Proliferation of Nuclear Weapons (NPT).

4. The non-application of Agency safeguards on multiple significant quantities (SQs) of weapons-grade highly enriched uranium in nuclear-powered attack submarines is unprecedented. If this matter is not addressed in an open, transparent, accountable and inclusive manner, could adversely affect the integrity and authority of the IAEA's safeguards system and associated verification practices.

5. The prospect of implementing Paragraph 14 of INFCIRC/153(Corr.) raises numerous policy, legal and technical issues due to lack of clarity and lack of definitions given the poor and inexact drafting of key elements of Paragraph 14. The scope of application and

limitations concerning implementation of Paragraph 14 have never been defined or elaborated, and as such have never been considered or assessed by the IAEA Board of Governors for purposes of approval or "appropriate action". Limited legal consideration by the Secretariat on this matter does not provide any precedent or practical experience to address practices and concerns regarding implementation of Paragraph 14-type arrangements by NPT NNWS parties.

6. The IAEA safeguards conclusions are based on evidentiary standards. Therefore, any arrangement for the non-application of safeguards to non-proscribed military activities must be transparent and accountable to the Agency (General Conference and Board of Governors) and all other States with Comprehensive Safeguards Agreements (CSAs) in force. The IAEA General Conference has yet to consider this matter and to reach any related understandings relevant to the implementation of CSAs, thus underscoring the urgent need for further dialogue.

7. The Secretariat and IAEA Member States should consider establishing or utilizing various forums for contributing to the development of agreed common understandings concerning the "arrangements" referred to as necessary under Paragraph 14 of CSAs, including special committees of the Board, independent international technical experts, the Standing Advisory Group on Safeguards Implementation (SAGSI), and technical briefings and meetings on the non-application of safeguards in the context of the AUKUS nuclear submarine programme, all the parties concerned and interested Member States should be included in the above mentioned efforts.

8. Before NNWS can use nuclear material outside of safeguards and intended for non-prohibited military nuclear activities, there need to be agreed understandings on the concepts, terms and implications of any implementation of Paragraph 14 of INFCIRC/153 (Corr.). Regardless of the final form of any arrangement reached, it must be designed to not adversely impact the credibility and universality of application of CSAs.

9. Attendees extended their appreciations to Ambassador Li Song for convening this workshop and his introductory remarks, welcomed the presence and statement of Ambassador Ian Biggs, Permanent Representative of Australia to the IAEA, noting that consistent, open, and transparent engagement between AUKUS partners, Member States, and the Secretariat, is urgent and essential, and encouraged AUKUS partners' participation in future workshops and discussions on Paragraph 14 of INFCIRC/153 (Corr.). During the workshop the usefulness of continuation of the practice of similar seminars in the future was also highlighted.

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Different views and concerns were expressed during the workshop, which further reflected the complexity and controversy of the AUKUS cooperation.

1. The workshop briefly reviewed the negotiating history of Paragraph 14 of INFCIRC/153(Corr.), as well as various approaches the IAEA has taken in practice in developing procedures and guidance on safeguards-related matters. Some views suggested there have been very limited in-depth policy considerations by the Agency on this matter in the past and no practical experience exists on the interpretation or implementation of Paragraph 14 type of arrangements by NPT parties and the Agency's Secretariat. Some views claimed that naval nuclear propulsion is not prohibited under the NPT and INFCIRC/153 (Corr.). While other views emphasized the crucial role of Member States and technical experts, including the SAGSI, in addressing novel and complex technical safeguards questions as they arose in the past.

2. Opinions on the application of Paragraph 14 remained controversial. Some views suggested that given the nature of the AUKUS nuclear-powered submarine collaboration

and its precedent-setting nature, the matter must first be subject to Board discussion and consensus-based decision-making, and that working transparently and within the framework of legal agreements is fundamental to the nuclear non-proliferation regime. Other views claimed that Paragraph 14 was included by the negotiators to ensure that the exclusion from safeguards of nuclear material for such a military use would not serve as a loophole for the diversion of nuclear material to a weapons programme.They noted that this is reflected in almost all CSAs concluded by the IAEA, with the paragraph numbers in INFCIRC/153(Corr.) corresponding, by and large, to article numbers in the actual CSAs. Some views emphasized that it is still an open question as to who has the right to interpret Paragraph 14 and its application.

3. In this regard, the role of the Secretariat, the Board of Governors and Member States on interpreting and developing AUKUS safeguards arrangements remained a controversial issue in the discussions. Some views stressed that arrangements should involve discussions and consensus among IAEA Member States, including the Board of Governors, to maintain the universality and effectiveness of the Agency's safeguards system. While other views insisted that the Board of Governors should play a more leading role in developing policy and technical understandings regarding Paragraph 14. Some views claimed that Paragraph 14 does not, on face value, require Board approval; nor does it not preclude it; and that therefore any such arrangement would be brought before the Board for "appropriate action", and it would be for the Board to decide on what would be the "appropriate action" (in this context it was recalled that the IAEA Secretariat, historically, is on record to have agreed with the view that an arrangement referred to Article 14(b) would be referred by the Secretariat to the Board of Governors and would require its approval). In contrast, other views maintained that matters concerning the interpretation and implementation of the Comprehensive Safeguards Agreement, including Paragraph 14, are inherently political and must involve all IAEA Member States and NPT States Parties.

4. Regarding the implications of AUKUS nuclear-powered submarine cooperation, some views stated that given the unprecedented nature of the AUKUS collaboration involving transfer of large quantities of weapons-grade highly-enriched uranium outside of safeguards; any safeguards approach to be developed would define future application of Paragraph 14 on nuclear-powered submarine acquisition programmes. Hence, professional technical and governmental open-ended discussions among Member States within the Agency framework are deemed necessary and essential. Some views expressed concerns regarding the implications of HEU fuelled nuclear-powered submarine programmes may have on the future implementation of policies about the minimization of the use of HEU in nuclear applications on which wide ministerial level support is expected at the forthcoming International Conference on Nuclear Security (ICONS2024) organized by the IAEA in Vienna.

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The divergence of the aforementioned viewpoints highlights the importance and necessity of a comprehensive, inclusive and transparent intergovernmental discussion process on AUKUS. The discussion on the AUKUS case-study and its proposed "arrangement" on the non-application of safeguards is only the beginning of such process. The following questions were raised during the workshop, these warrant further in-depth thinking and discussion involving of all interested IAEA Member States:

- Who has the right or authority to interpret Paragraph 14 of INFCIRC/153 (Corr.)? Does the IAEA Secretariat have the authority or mandate to interpret the provisions of the NPT without the involvement of Member States?
- How would "a non-proscribed military activity" be defined, and by whom?
- What is the definition of "the Agency": is it the Member States, the Director General, the Secretariat; or is the Agency the collectivity of the Member States along with the Director

General, and the Secretariat?

- Why have not the Board and Member States taken a leading role in developing policy and technical understandings regarding INFCIRC/153 (Corr.) Paragraph 14 implementation?
- What could be credible safeguards approaches and related technical objectives for HEU-fueled naval nuclear propulsion reactors and fuel?
- How will reaching a broader conclusion under the Additional Protocol be impacted in the case of a NPT NNWS implementing the INFCIRC/153 (Corr.) Paragraph 14 non-application of safeguards to nuclear material to be used in non-peaceful activities?
- How would the comprehensive safeguards agreement deal with the matter of the transfer to a NPT NNWS of HEU-fueled naval nuclear propulsion reactors?
- What technical measures of safeguards will apply to maintenance activities to be conducted on nuclear-powered submarines (SSNs) in ports in Australia starting in the second half of 2024.
- How would the IAEA determine the credibility and accuracy of “classified knowledge of the military activity” and to “the use of the nuclear material therein”? Would the IAEA have access for design information verification (DIV) for naval nuclear reactors?
- Does the Paragraph 14 (c) reference that the reporting arrangements shall not involve any approval or classified knowledge of the use of nuclear material in the military activity requiring non-application of safeguards imply that the State is under no obligation to inform the Agency of the claimed nuclear activity (whether naval nuclear propulsion or other)?
- Who would decide what is deemed classified knowledge of the military criteria, and based on what criteria?
- Can application of safeguards to the AUKUS submarine project be considered as technical “assistance”, and whether this kind of “assistance” would violate Article II of the IAEA Statute?
- What safeguards measures would be required for implementation by Australia to ensure accountability and transparency of its nuclear-powered submarine project, especially given that four or more tonnes of weapons-grade highly enriched uranium will be in use?
- How would the IAEA verify the correctness and completeness of the declaration by the State on the total quantity and isotopic composition of the nuclear material not under safeguards in use in a non-proscribed military activity?
- Is the interpretation of the safeguards arrangement of AUKUS to be developed in accordance with Paragraph 14 within the exclusive jurisdiction of the Secretariat or of the Board?
- What would be the scope and content of the reporting arrangements for the non-application of safeguards on non-proscribed military activities?
- How to evaluate the challenges of the unprecedented AUKUS project to the existing IAEA safeguards system, especially with regard to the Agency’s standard practice of inclusive, transparent, open-ended consultations involving all interested Member States on all matters of safeguards, safety and security, as well as to the tradition of consensus on issues concerning each and every major step of the development of IAEA Safeguards?
- What support could be provided by interested Member States to the Director General and the Secretariat to facilitate open-ended consultations and technical briefings on matters concerning interpretation and implementation of Paragraph 14?
- What role the Secretariat should play to facilitate the intergovernmental discussion process on AUKUS?
- Will the Safeguards arrangement of AUKUS nuclear submarine cooperation serve as a precedent and guideline for potential similar collaborations in the future?

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AUKUS: A Case Study about the Development of IAEA Comprehensive Safeguards

（VIC CR-1, 14:00 10 May）

Opening remarks by the Moderator

Introductory remarks
H.E. Amb. Li Song, *Permanent Representative of the People's Republic of China to the United Nations(Vienna)*
H.E. Amb. Ian David Grainge Biggs, *Permanent Representative of Australia to the United Nations(Vienna)*

Panel 1: IAEA safeguards tradition: typical and historical cases for the development of IAEA safeguards system, including arrangements related to the non-application or special procedures of safeguards.
Panelist: Laura Rockwood, *Senior Fellow of the VCDNP, Former Section Head for Non-Proliferation and Policy Making in the Office of Legal Affairs of the IAEA*
Panel 2: AUKUS and its transfer of weapon-grade nuclear material: new practice, new territory and new development of IAEA safeguards.
Panelist: Anton Khlopkov, *Director of the Center for Energy and Security Studies*
Panel 3: Article 14 and AUKUS: whether an universally applicable method is necessary/feasible? How to define non-discriminatory and universally applicable safeguards approaches, safeguards objectives, safeguards measures, and special procedures?
Panelist: Mr. Tariq Rauf, *Former Head of the Verification and Security Policy Coordination Office of the IAEA*
Panel 4: Developing safeguards arrangement on AUKUS: role of the Secretariat, Board of Governors and Member States.
Panelist: Guo Xiaobing, *Senior Fellow of the China Arms Control and Disarmament Association* (on-line)

Commentators
Mr. Vilmos Cserveny, *Former Assistant Director General of the IAEA*
Mr. Nikolai Khlebnikov, *Russian Representative at Standing Advisory Group on Safeguards Implementation of the IAEA, Former Director of the Division of Technical Support of the IAEA*
Mr. Naeem Ahmad Salik, *Executive Director of Strategic Vision Institute* (on-line)
Mr. Zhao Xuelin, *Research Associate of China Institute of Nuclear Industry Strategy* (on-line)

Representative of IAEA Secretariat
Mr. Ionut Suseanu, *Head of the Non-Proliferation and Policy-Making Organs Section, Office of legal Affairs of the IAEA*

Q&A session

Conclusion by the Moderator